



GENERAL BY-LAWS OF
807 FOOD COOPERATIVE INC.

Incorporated under the Cooperative Corporations Act

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BE IT ENACTED as a bylaw of the 807 FOOD COOPERATIVE INC.(the "Cooperative") as follows:

1. GENERAL

- 1.1. Head Office: The head office of Cooperative shall be located at the City of Dryden, Ontario, and at such place therein as the directors may from time to time determine.
- 1.2. Objectives: This producer Cooperative's primary objectives are:
 - (a) Promote local food production and biodiversity, reducing reliance on centralized systems.
 - (b) Educate communities on sustainable living, permaculture, and closed-loop systems.
 - (c) Develop and adopt agroecological practices to improve soil health and minimize environmental impact.
 - (d) Support local businesses and farmers to create jobs and foster economic development.
 - (e) Build networks for knowledge sharing and skill development to enhance community resilience.
 - (f) Advocate for policies that incentivize sustainable agriculture and support community initiatives.
 - (g) Preserve traditional food, indigenous methods, and regenerative farming knowledge.
 - (h) Foster positive change in food production, consumption, distribution, and environmental stewardship.
- 1.3. Cooperative Corporations Act: The affairs of the Cooperative will be governed by and conducted in accordance with the Cooperative Corporations Act of Ontario (the "Act"). Certain provisions of that Act relate to various matters not dealt with in the bylaws of the Cooperative and should be consulted where appropriate. If any conflict arises between the mandatory provisions of the Act and the bylaws of the Cooperative, such provisions of the Act shall govern.
- 1.4. Records: Copies of the following documents shall be securely kept at the head office of the Cooperative:
 - (a) the Cooperative Corporations Act and Regulations;
 - (b) the Articles of Incorporation;
 - (c) all bylaws;
 - (d) a register of members and security holders in which is set out the information required by the Act (section 114, paragraph 3);

- (e) a register of directors in which is set out the names and resident addresses while directors, including the street and number, if any, of all persons who are or who have been directors of the Cooperative with the several dates on which they have become or ceased to be directors;
- (f) all accounting books and documents (section 114, paragraph 5 of the Act);
- (g) the minutes of all meetings of members, directors and any executive or other committee; and
- (h) a register of transfers of securities.

These records shall be available for examination by any director and, with the exception of accounting records and minutes of proceedings at meetings of directors and any committee, by members and creditors or their agents or personal representatives during normal business hours for purposes consistent with the good faith exercise of membership rights and responsibilities in the Cooperative.

2. Membership

- 2.1. Qualifications for Membership: Members include the incorporators, who must meet the qualifications set out in subparagraphs 2.1(a) through 2.1(d) of this paragraph, within one year of incorporation.

The board of directors may admit as a member in the Cooperative a person:

- (a) who is or intends to be a regular or intermittent supplier of the Cooperative;
- (b) who supports the objectives of the Cooperative as set forth in the Articles of Incorporation;
- (c) who completed a membership application. Application for membership in the Cooperative shall be in writing to the board of directors with the appropriate membership application form provided by the Cooperative;
- (d) who has paid or is paying the membership fees as required for their member class;
- (e) who has paid or is paying additional investments in the Co-operative, in an amount determined by the board of directors from time to time and approved at a general meeting of the members; and
- (f) whose admission would not exceed the non-farmer producer membership ratio of 49%.

- 2.2. Non-Members on Contract: The Cooperative shall not contract out work normally performed by its members to non-members or non-employees, on a temporary basis, without the prior approval of two-thirds of the membership.

- 2.3. Disposition of Application: Upon application for membership, the board of directors shall decide whether to:

- (a) accept the application, in which case the supplier will become a full member as soon as they meet all the membership qualifications as set forth in paragraph 2.1; or
 - (b) reject the application, in which case the supplier's membership with the Cooperative:
 - i. will be terminated at a time set by the board; or
 - ii. may be continued for a maximum, fixed term of 6 months, at the sole discretion of the board.
- 2.4. Benefits of Membership: Members shall enjoy the following rights of membership:
- (a) the right to vote at the annual and special meetings of members;
 - (b) rights of members otherwise set out in the Act, the articles, and the bylaws of the Cooperative.
- 2.5. Transfer of Membership: Membership shall not be transferable.
- 2.6. Withdrawal: A member of the Cooperative may withdraw from membership by giving to the board of directors one month notice of their intention to withdraw. If there are pending orders from the member, then withdrawal will not be processed until fulfillment of the pending orders.
- 2.7. Expulsion: A member of the Cooperative may be expelled from the membership by the directors in accordance with section 66 of the Act if they no longer meet the membership qualifications.
- 2.8. Statement of Nondiscrimination: The Cooperative shall not discriminate on the basis of race, age, sex, sexual preference, religion, disability, or national origin when considering a person for membership.

3. MEETINGS OF MEMBERS

- 3.1. Annual Meetings: The annual meeting of the members shall be held within six months of the fiscal year end, and within 15 months of any previous annual meetings. The date, time, and location of the annual meeting shall be fixed by the board of directors. The annual meeting shall be held for the purpose of electing the directors, receiving the financial statements and any auditor's report thereon, and the transaction of any other business which may properly be brought before an annual meeting of the members.
- 3.2. Special Meetings: Other meetings of the members may be called by order of the President, Vice President, the directors, or by written application of 5% of the members in accordance with the Act, at any time and at any place within Northwestern Ontario, and the Secretary shall send the requisite notice of such meeting to members of the Cooperative.
- 3.3. Business Transacted: At the meeting of the members called under paragraph 3.2, only the business stated in the notice calling such a meeting may be transacted.

3.4. Notice of Meetings: A written notice of each annual or special membership meeting stating the time, place and purpose shall be posted in the place of business and shall be given by the Secretary at least 10 days but no more than 50 days before the meeting, to each member either:

(a) in person;

(b) by leaving the notice at the member's residence or usual workplace;

(c) by mailing it to the member's address as shown in the records of the Cooperative; or

(d) by e-mailing it to the member's e-mail address as shown in the records of the Co-operative.

Each member shall notify the Cooperative of their current mailing address.

3.5. Invalidation of Proceedings: When notice is received generally by the members, the accidental omission to give notice to any member thereof or the nonreceipt of any notice by any member thereof shall not invalidate any resolution passed or any proceedings taken at such meeting.

3.6. Waiver of Notice: Notwithstanding anything contained in these bylaws, no notice of any annual or other meetings of the members shall be necessary:

(a) where all the members entitled to vote at such a meeting are present in person, and in the case of an annual meeting, consent to the transaction of the business, or in the case of any other meeting, consent to the transaction of the business for which such meeting is being held; or

(b) where all members entitled to vote at such meeting who are not present either before or after the meeting waive in writing notice of the meeting, or in the case of a meeting other than the annual meeting, notice of the meeting and the purpose for which it is being held.

3.7. One Member, One Vote: Each member business at the time of a meeting is entitled to one and only one vote on any matter requiring membership voting.

3.8. No Proxies: Voting by proxy shall not be permitted.

3.9. Voting: Normally, questions arising at any meeting of the members shall be decided by consensus. Where the meeting cannot reach consensus, a member may make a special motion requiring the main motion to be decided by a majority of two-thirds. This special motion, which must have a seconder, may not be debated and must itself have a majority of two-thirds.

3.10. Quorum: A quorum for any meeting of the members shall be 51% of the members. No business shall be transacted at any meeting unless the quorum requisite be present.

3.11. Absence of Quorum: If at any meeting of the members, other than requisitioned meetings, a quorum is not present within thirty minutes of the time for which the meeting is called, the presiding officer shall adjourn the meeting to a date not less than seven and not more than 15 days thereafter. Notice of the reconvened meeting shall be given by the Secretary at least 5 days previous to the date of the meeting. The decisions of the reconvened meeting shall be

binding upon the Cooperative provided that the number of members which is the greater of 2 or 25% of the membership, is present. In the case of a requisitioned meeting of the members, if a quorum is not present within 30 minutes of the time for which the meeting is called, the meeting shall be dissolved.

- 3.12. Presiding Officer: The President or other designee, as determined by the board of directors, shall preside at membership meetings. However, if at a meeting the board's designee is not present within 15 minutes after the time appointed for the holding of the meeting, the members present shall choose a person from their number to be the chairperson, provided a quorum is present.

4. BOARD OF DIRECTORS

- 4.1. Powers: The business of the Cooperative shall be under the direction and control of a board of directors who may exercise all such powers and may do all such acts and things as may be exercised or done by the Cooperative and are not by the bylaws of the Cooperative or by statute expressly directed or required to be done by the Cooperative at a meeting of the members.
- 4.2. Qualifications: The qualifications of each director shall be that they be at least 18 years of age and that they be a member of the Cooperative.
- 4.3. Election and Size: The board of directors shall consist of a minimum of 5 and a maximum of 7 directors, who shall be elected for a term of two years arranged so that at least 50% of the directors are elected each year. Directors shall be eligible for reelection upon completion of their term, and the maximum number of consecutive terms a director may serve is three.
- 4.4. Tenure: Except as otherwise provide by law, by the articles, or by these bylaws, directors shall hold office until their successors are elected.
- 4.5. Nominations: At a meeting where directors are to be elected, the meeting, before nominations are called for, shall choose its chairperson for the purpose of conducting the elections. Nominations shall be on an individual basis and the chairperson shall not accept a blanket motion to elect directors until after nominations have been closed.
- 4.6. Election: Every member entitled to vote at an election of directors, if they vote, shall cast thereat a number of votes equal to the number of directors to be elected, and the member shall distribute the votes among the candidates in such a manner as they see fit, but no candidate shall receive more than one vote from each member.
- 4.7. Vacation of Office: The office of a director shall be vacated:
- (a) if they cease to have the necessary qualifications for office;
 - (b) if they are absent without leave of the directors for three consecutive regular meetings of the directors;
 - (c) if by notice in writing to the Cooperative they resign their office; or

(d) if by resolution passed by a two-thirds majority of the votes cast at a meeting of the members called for that purpose, they are removed from office.

- 4.8. Vacancy: Whenever any vacancy occurs on the board of directors, provided a quorum of directors remains in office, the directors may appoint a director to fill such vacancy, to serve for a term ending on the date of the next annual general meeting.
- 4.9. Meetings of Directors: Regular meetings of the directors shall be held as often as the business of the Cooperative may require but, in any event, not less than every four months.
- 4.10. Place of Meeting and Notice: Meetings of the directors may be held either at the head office of the Cooperative or elsewhere within or outside Northwestern Ontario as the directors from time to time may determine, but in any financial year of the Cooperative a majority of the meetings shall be held at a place within Northwestern Ontario. A meeting of the directors may be convened by the President or any three directors at any time. Notice of such meeting shall be delivered, mailed, e-mailed, faxed, or telephoned to each director not less than 10 days (exclusive of the day on which notice is delivered, mailed, faxed, or telephoned, but inclusive of the day for which the notice is given) before the meeting is to take place; provided meetings of the directors may be held at any time without formal notice if all the directors are present, those absent have waived notice, or have signified their consent in writing to the meeting being held in their absence. Notice of any meeting or any irregularity in any meeting or notice thereof may be waived by a director.

In the case of the first meeting of the directors to be held immediately following an annual meeting, or in the case of a director elected to fill a vacancy of the board, it shall not be necessary to give notice of such a meeting to the newly elected director or directors in order to legally constitute the meeting, provided that a quorum of directors is present.

- 4.11. Quorum: Two-thirds of the directors authorized shall constitute a quorum at any meeting of the directors.
- 4.12. Voting: Normally, questions arising at any meeting of the board of directors shall be decided by consensus. Where a meeting cannot reach a consensus, a director may make a special motion requiring the main motion be decided by a majority of two-thirds of the directors present. The motion, which must have a seconder, may not be debated and must itself have a majority of two-thirds of the directors present.
- 4.13. Remuneration: The directors shall serve without remuneration for their work as directors. However, the directors may be entitled to be reimbursed for travelling and other expenses properly incurred by them in attending meetings of the board or any committee thereof or incurred by them as directors in connection with the business of the Cooperative. Nothing herein contained shall preclude any director from serving the Cooperative in any other capacity and receiving remuneration therefor.
- 4.14. Executive Committee: Where the number of directors is more than six, the directors may elect from among their number an executive committee consisting of not fewer than three of whom a majority shall be resident Canadians and may delegate to the executive committee any powers of the board of directors, subject to the restrictions, if any, imposed from time to time

by the directors, to a financial limit of \$10,000.00 unless otherwise specified by the Board of Directors

- 4.15. Quorum: A majority of the executive committee shall constitute a quorum but no business shall be transacted unless a majority of the quorum are resident Canadians.

5. OFFICERS

- 5.1. Election and Appointment: The directors shall annually or as often as may be required, elect a President, and elect or appoint a Vice President, Secretary, and Treasurer. None of the said officers, except the President, need be a member of the board of directors. Any two of the aforesaid offices may be held by the same person, except those of the President and Vice President, In the case and whenever the same person holds the office of Secretary and Treasurer, they may, but need not be known as the Secretary-Treasurer. A vote of the majority of the directors shall be necessary for the election of the said officers. The directors may from time to time elect or appoint such other officers and agents as they shall deem necessary who shall have such authority and shall perform such duties as the directors from time to time shall prescribe.
- 5.2. Remuneration and Removal: The remuneration of all officers elected or appointed by the directors shall be determined from time to time by resolution of the directors. The fact that any officer or employee is a director or member of the Cooperative shall not disqualify them from receiving remuneration as may be determined. All officers, in the absence of agreement to the contrary, shall be subject to removal by resolution of the directors at any time, with or without cause, provided that a majority of the directors shall vote in favour thereof.
- 5.3. Delegation: In the case of the absence or inability to act of the President, Vice President or any other officer of the Cooperative or for any other reason that the directors may deem sufficient, the directors may delegate all or any of the powers of such officer to any other officer or to any director for the time being, provided that a majority of directors concur therein.
- 5.4. Duties of President: The President shall, if present, preside at all meetings of members and directors. They shall sign all instruments which require their signature and shall perform all duties incident to their office and shall have such other powers and duties as may from time to time be assigned to them, by the directors.
- 5.5. Duties of Vice President: In the absence or disability or refusal to act of the President, the Vice President shall be vested with all the powers and they shall perform all the duties of the President.
- 5.6. Duties of Secretary: The Secretary shall issue or cause to be issued notices for all meetings of the members and directors when directed to do so, and shall keep or cause to be kept all records required by paragraph 1.5 of these bylaws. They sign with the president or other signing officer or officers of the Cooperative such instruments as require their signature and shall perform such other duties as the terms of their engagement call for or the directors may from time to time require of them.

- 5.7. Duties of Treasurer: The Treasurer or some other officer specifically charged with the duty shall have the care and custody of all the funds and securities of the Cooperative and shall deposit the same in the name of the Cooperative in such credit union(s), bank(s), or with such depository(ies) as the directors may direct. They shall keep or cause to be kept proper accounting records in accordance with the Act. They shall at all reasonable times exhibit their books and accounts to any director upon application at the office of the Cooperative during business hours. They shall sign or countersign such instruments as require their signature and shall perform all duties incident to their office or that are properly required of them by the directors.
- 5.8. General Manager: The directors may from time to time appoint a general manager or manager who shall not be one of the directors of the Cooperative and may delegate to them full authority to manage and direct the affairs of the Cooperative (except such matters and duties as by law must be transacted or performed by the directors or by the members in general meeting), and to employ, discharge, and fix wages or salaries of temporary agents and employees of the Cooperative or may delegate to them any lesser power. The manager may recommend to the directors the appointment and removal of and wages or salaries to be paid to employees of the Cooperative. The manager shall at all reasonable times give to the directors or any of them all information they require regarding the affairs of the Cooperative.
- 5.9. Vacancy: If one or more of the offices of the President, Vice President, Secretary, or Treasurer shall become vacant by reason of death, resignation, disqualification or otherwise, the directors by resolution may elect or appoint an officer to fill such vacancy.
- 5.10. Reports: The board shall require the President, Secretary/Treasurer, and/or other officers or directors to submit financial statements and other reports in such form and at such frequency as the board may require from time to time.

6. INDEMNIFICATION OF DIRECTORS AND OFFICERS

- 6.1. Indemnity: Subject to paragraph 6.2 of these bylaws, every director and officer of the Cooperative and their heirs, executors, administrators, and other legal personal representatives, shall be indemnified and saved harmless by the Cooperative from and against,
- (a) any liability and all costs, charges, and expenses that they sustain or incur in respect of any action, suit or proceeding that is proposed or commenced against them for or in respect of anything done or permitted by them in respect of the execution of the duties of office; and
 - (b) all other costs, charges and expenses that they sustain or incur in respect of the affairs of the Cooperative.
- 6.2. Limitation of Indemnity: No director or officer of the Cooperative shall be indemnified by the Cooperative in respect of any liability, costs, charges or expenses that they sustain or incur in or about any action, suit or other proceeding as a result of which they are adjudged to be in breach of any duty or responsibility imposed upon them under the Act or under any other

statute unless, in an action brought against them in their capacity as director or officer, they have achieved complete or substantial success as a defendant.

- 6.3. Insurance: The Cooperative may purchase and maintain insurance for the benefit of its directors and officers, except insurance against a liability, cost, charge or expense of the director or officer incurred as a result of a contravention of the standard of care required of officers and directors by the Act.

7. AUDITORS

- 7.1. Appointment and Remuneration: The members at each annual meeting shall appoint an auditor, when it is required by the Act, who is familiar with cooperative accounting and practice. The auditor when appointed shall hold office until the next annual meeting, and if an appointment is not made, the auditor in office shall continue until a successor is appointed. The remuneration of the auditor shall be fixed by the directors.
- 7.2. Access to Books and Information: The auditor shall at all reasonable times have access to the books, accounts and vouchers of the Cooperative and may require from the directors and officers such information and explanations as may be necessary for the performance of their duties.
- 7.3. Report: The auditor, if required by the Act or the Treasurer, shall make a report to the members on the financial statements to be laid before the Cooperative at each annual meeting during their term of office and shall state in their report whether in their opinion the financial statement referred to therein presents fairly the financial position of the Cooperative and the results of its operation for the period under review.

8. CHEQUES, DRAFTS AND NOTES

- 8.1. All cheques, drafts, or other orders for the payment of money and all notes and acceptances and bills of exchange shall be signed by such officer or officers or person or persons whether or not officers of the Cooperative and in such manner as the directors may from time to time designate.

9. EXECUTION OF INSTRUMENTS

- 9.1. Execution of Instruments: Contracts, documents or instruments in writing requiring the signature of the Cooperative may be signed by any two of the directors, officers and/or staff members who have been given signing authority by the directors. All contracts, documents and instruments in writing so signed shall be binding upon the Cooperative without any further authorization or formality. The directors shall have power from time to time by resolution to appoint any officer or officers, person, or persons to sign contracts, documents and

instruments in writing generally or to sign specific contracts, documents and instruments in writing on behalf of the Cooperative.

10. FISCAL YEAR

- 10.1. The financial or fiscal year of the Cooperative shall terminate on the last day of June in each year.

11. DISSOLUTION

- 11.1. In the event of dissolution of the Cooperative, or upon its conversion to another business form, after payment of all debts and liabilities of the Cooperative, the remaining property of the Cooperative shall be distributed or disposed of to non-profit or charity organizations carrying on their activities solely within Canada.

12. NOTICES

- 12.1. Signatures: The signatures to any notice to be given by the Cooperative may be written, stamped, e-signed, or printed.
- 12.2. Method of Giving: Any notice may be given by the Cooperative to any member or director either personally, by facsimile, or by electronic mail, or by sending it through the post in a prepaid envelope or wrapper addressed to such member or director at their address as same appears in the books of the Cooperative or if no address be given therein then to the last address of such member or director known to the Secretary.
- 12.3. More Than One Name: All notices with respect to any shares or loans registered in more than one name shall be given to whichever of the persons is named first in the books of the Cooperatives and notice so given shall be sufficient notice to all holders of such share or loan.
- 12.4. Transfer of Loans: Every person who by operation of law, transfer or by other means whatsoever shall become entitled to any share or loan shall be bound by every notice in respect of such share or loan which previous to their name and address being entered on the books of the Cooperative was duly given to the person from whom they derive their title to such share or loan.
- 12.5. Where Member is Deceased: Any notice or document delivered or sent by post or left at the address of any member as the name appears in the books of the Cooperative shall, notwithstanding that such member be then deceased, and whether or not the Cooperative has notice of their decease, be deemed to have been duly served in respect of the share or member loan whether held solely or with other persons by such member until some other person be entered in their stead in the books of the Cooperative as the holder or one of the

holders thereof and such service shall for all purposes be deemed as sufficient service of such notice or document on their heirs, executors or administrators and on all persons, if any, interest with them in such shares or loans.

- 12.6. Certificate of Secretary: A certificate of the Secretary or other duly authorized officer of the Cooperative in office at the time of the mailing of the certificate, as to facts in relation to the mailing and delivery of any notice to any member, director or officer or publication of any notice shall be conclusive and binding on every member, director or officer of the Cooperative as the case may be.

13. AMENDMENTS

- 13.1. Neither these bylaws nor any bylaws to amend these bylaws are effective until they are passed by the directors and confirmed, with or without variation, by at least two-thirds of the votes cast at a general meeting of members of the Cooperative duly called for that purpose.

14. INTERPRETATION

- 14.1. In all bylaws of the Cooperative, the singular shall include the plural and the plural the singular; the masculine and feminine shall include all pronouns; the word "person" shall include firms and corporations; the word "Act" shall mean the Cooperative Corporations Act, Revised Statutes of Ontario 1990 and any Act that may be substituted therefore or as from time to time amended. Whenever reference is made in this bylaw to any statute or section thereof, such reference shall be deemed to extend and apply to any amendment to said statute or section, as the case may be.

PASSED by the board of directors of the Corporation this _____ day of _____, 20____.

_____	_____	c/s
Signature	Signature	

Role: _____ Role: _____

CONFIRMED by a two-thirds majority of the members this _____ day of _____, 20____.

_____	_____	c/s
Signature	Signature	

Role: _____

Role: _____